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LEASE
WITH OPTION TO PURCHASE
between
U.S. BANK NATIONAL ASSOCIATION
as Lessor
and
CITY OF CHEYENNE, WYOMING
as Lessee

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LEASE WITH OPTION TO PURCHASE

LESSOR: U.S. BANK NATIONAL ASSOCIATION

LESSEE: CITY OF CHEYENNE, WYOMING

DATE: November 18, 2013

THIS LEASE WITH OPTION TO PURCHASE, dated as of the date set forth above, by and between the Lessor named above, a duly organized and existing national banking association (together with its successors and assigns, "Lessor"), and the Lessee named above, a municipal corporation duly organized and existing under the Constitution and the laws of the State of Wyoming (together with its successors, "Lessee").

WITNESSETH:

WHEREAS, Lessor and Lessee are entering into this Lease with respect to the following facts:

(a) Lessor acquired from Lessee the Land and all existing improvements located upon the Land, on which the Project will be completed, which acquisition is described in that certain Purchase Agreement ("PSA") dated of even date herewith by and between Lessee as seller and Lessor as buyer;

(b) Capitalized terms not otherwise defined in this Lease shall have the meaning ascribed in the PSA;

(c) Lessee conveyed its interest in the Project to Lessor in exchange for the payment of \$2,000,000 as the Initial Advance at Closing, with additional amounts up to the Maximum Acquisition Price to be advanced to Lessee on or before August, 30, 2015, in accordance with the terms of the PSA, with repayment of such Advances to be made in accordance with the terms and provisions of this Lease;

(d) Lessor is paying the Acquisition Price over time, as described in the PSA, with the proceeds of the Acquisition Price to be used by Lessee to reimburse the Lessee for payments made for the Project;

(e) Lessee has agreed to pay the Rental Payments described in this Lease in order to repay the Advances made by Lessor to Lessee for the Acquisition Price plus such other accrued interest, fees and costs in accordance with the terms provided in this Lease, with an option provided at the end of the Lease Term for Lessee to purchase the Project from Lessor, upon the terms and conditions hereinafter set forth; and

(f) Lessee finds that it is in the best interest of Lessee to lease the Leased Property from Lessor, for the rentals and upon the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the premises and the mutual covenants and agreements herein set forth, Lessor and Lessee do hereby covenant and agree as follows:

ARTICLE 1 DEFINITIONS AND RULES OF CONSTRUCTION

1.1 Definitions of Words and Terms. In addition to words and terms defined herein, the following words and terms as used in this Lease have the following meanings, unless some other meaning is plainly intended:

“ADA” means the Americans with Disabilities Act of 1990, 47 U.S.C., Section 12101 et seq., as amended from time to time, or any regulations promulgated thereunder.

“Additional Rent” means those payments required to be made by Lessee by Section 4.2.

“Advance” means a disbursement of the Acquisition Price to Lessee by Lessor pursuant to the terms of the PSA.

“Advance Request” shall have the meaning set forth in the PSA.

“Business Day” means any day other than a Saturday, a Sunday or a day on which banks in Cheyenne, Wyoming are authorized by law to remain closed.

“Closing Date” has the meaning set forth in the PSA.

“Code” means the Internal Revenue Code of 1986, as amended and the regulations promulgated thereunder from time to time.

“Counsel” means an attorney duly admitted to practice law before the highest court of any state and, without limitation, may include legal counsel for either Lessee or Lessor.

“Event of Default” or “Default” means any Event of Default as defined in Section 12.1.

“Fiscal Year” means the fiscal year of Lessee for financial and budgetary purposes which commences on the 1st day of July of each calendar year and ends on 30th day of June of each calendar year.

“Impositions” means those Impositions defined as such in ARTICLE 6.

“Improvements” shall have the meaning ascribed in the PSA.

“Interest Portion” means the Interest Portion of the total Rental Payments calculated at the Interest Rate, as such Interest Portion may be adjusted from time to time as the Interest Rate is adjusted, the Acquisition Price to be advanced under the PSA is adjusted and the Principal Portion is repaid under this Lease. The Interest Portion does not include any portion of the total Rental Payments paid as Additional Rentals or as any part of the Non-Use Fee. An example of the calculation of the Interest Portion is set forth in the chart on Exhibit A hereof.

“Land” means that certain real property described in Schedule 1 attached to this Lease.

“Lease” means this Lease with Option to Purchase between Lessor and Lessee, as from time to time supplemented and amended in accordance with ARTICLE 13.

“Leased Property” means the Land and Improvements, which Improvements include the Improvements located on the Land as of the Closing Date and all Improvements constructed upon the Land following the Closing Date, which additional Improvements are sometimes referred to as New Construction and for purposes of the Obligations under this Lease shall be deemed to be after acquired property, which, upon completion automatically become the property of Lessor, which are then leased to Lessee pursuant to this Lease.

“Lease Term” means the Original Term and any and all Renewal Terms, up to the Maximum Lease Termination Date.

“Lessee Representative” means the person or persons at the time designated to act on behalf of Lessee in matters relating to this Lease as evidenced by a written certificate furnished to Lessor containing the specimen signature of such person or persons and signed on behalf of Lessee by its Mayor. Such certificate may designate an alternate or alternates each of whom will be entitled to perform all duties of Lessee Representative.

“Lessor Representative” means the person or persons at the time designated to act on behalf of Lessor in matters relating to this Lease as evidenced by a written certificate furnished to Lessee containing the specimen signature of such person or persons and signed on behalf of Lessor by its authorized officer. Such certificate may designate an alternate or alternates, each of whom will be entitled to perform all duties of the Lessor Representative.

“Maximum Lease Termination Date” means the Original Term and all Renewal Terms through the final Rental Payment Date listed on Exhibit A, provided that the Maximum Lease Termination Date will not be later than the date which is earlier of: (a) 4 years and 3 months following the date hereof; or (b) the date all amounts advanced by Lessor to Lessee under the PSA, the repayment of which is described on Exhibit A, have been repaid in full.

“Maximum Acquisition Price” shall have the meaning set forth in the PSA. The Acquisition Price advanced under the PSA is non-revolving and once repaid may not be readvanced.

“Net Proceeds” when used with respect to any insurance proceeds or any condemnation award or amounts received from the sale of property under the threat of condemnation, means the amount remaining after deducting all expenses (including attorneys’ fees and any expenses of Lessee and Lessor) incurred in the collection of such proceeds or award from the gross proceeds thereof.

“Obligations” means the payment of all Rental Payments and other amounts that may be due or become due under the Lease or any of the Transaction Documents plus in the event of exercise of the option to purchase the Project contained in the Lease, the amount of the Purchase Price.

“Original Term” means the initial term of this Lease beginning as of the date hereof and ending on the last day of Lessee’s current Fiscal Year.

“Permitted Encumbrances” means those items listed as exceptions numbered C.1 through C.5, inclusive on Schedule B, Section II of that certain Commitment for Title Insurance issued by Laramie County Abstract & Title Company as agent for Chicago Title Insurance Company as File No. LCA-24768-13 with an effective date of October 4, 2013 at 5:00 p.m., as updated October 8, 2013.

“PSA” means that certain Purchase Agreement, of even date herewith, between Lessee, as seller and Lessor as buyer.

“Project” means the existing improvements located on the Land, together with all additional improvements or updates to existing improvements or updates to existing improvements being constructed upon the Land, which are sometimes referred to as the New Construction (as defined in the PSA).

“Purchase Price” means the amount designated as such on Exhibit A that Lessee may, in its discretion, pay to Lessor to purchase the Leased Property plus all accrued but unpaid interest through the date of receipt of the Purchase Price, plus those recording fees and Lessor’s legal fees and costs necessary to close the purchase and sale of the Leased Property to the Lessee and to terminate the Lease and reconvey the Land and the improvements located upon the Land to the Lessee.

“Remodeling” means remodeling, refurbishment, repairs, installation of life safety features and security equipment, installation or renewal of energy facilities, installation of emergency generator(s), upgrades to lighting, painting, carpeting, windows and doors, replacements done for compliance with building code, modifications to the electrical system and any similar types of work to the Improvements, other than routine maintenance or cleaning of the Leased Property, which Remodeling will constitute capital expenditures.

“Renewal Certificate” means a certificate of the Lessee in the form set forth in Exhibit C, which Renewal Certificate will be delivered to the Lessor on or prior to December 31st of any Fiscal Year in accordance with Section 3.2.

“Renewal Terms” means the renewal terms of this Lease during which the Lease Term is extended in accordance with Section 3.2, each having a duration of one year and a term coextensive with Lessee’s Fiscal Year except as otherwise provided in said Section 3.2.

“Rental Payment Dates” means the dates during the Lease Term on which Rental Payments are due as set forth on Exhibit A.

“Rental Payments” means those payments required to be made by Lessee by Section 4.1.

“State” means the State of Wyoming.

“Tax Compliance Certificate” means the Tax Compliance Certificate executed by Lessee in connection with the execution and delivery of this Lease.

“Transaction Documents” means the PSA, Warranty Deed, Lease, Bill of Sale and any other agreements, documents or certificates related to the foregoing or referred to within the foregoing or related to the Leased Property.

1.2 Rules of Construction. Words of the masculine gender will be deemed and construed to include correlative words of the feminine and neuter genders. Unless the context will otherwise indicate, the words importing the singular number will include the plural and vice versa, and words importing person will include firms, associations and corporations, including public bodies, as well as natural persons.

The words “herein,” “hereby,” “hereunder,” “hereof,” “hereto,” “hereinbefore,” “hereinafter” and other equivalent words refer to this Lease and not solely to the particular article, section, paragraph or subparagraph hereof in which such word is used.

Reference herein to a particular article, a particular section, a particular exhibit or a particular schedule will be construed to be a reference to the specified article, section, exhibit or schedule hereof or hereto unless the context or use clearly indicates another or different meaning or intent.

Whenever an item or items are listed after the word “including,” such listing is not intended to be a listing that excludes items not listed.

1.3 Section and Article Headings. The Section and Article headings herein are for convenience only and in no way define, limit or describe the scope or intent of any of the provisions hereof.

1.4 Execution of Counterparts. This Lease may be executed simultaneously in two or more counterparts, each of which will be deemed to be an original, and all of which together will constitute but one and the same instrument.

1.5 Construction and Enforcement. This Lease will be construed and enforced in accordance with the laws of the State. Wherever in this Lease it is provided that either party will or will make any payment or perform or refrain from performing any act or obligation, each such provision will, even though not so expressed, be construed as an express covenant to make such payment or to perform, or not to perform, as the case may be, such act or obligation.

1.6 Severability. In the event any provision hereof are determined to be invalid or unenforceable, the validity and effect of the other provisions hereof will not be affected thereby.

1.7 Complete Agreement. This written agreement is a final expression of the agreement between the parties hereto and such agreement may not be contradicted by evidence of any prior oral agreement or of a contemporaneous oral agreement between the parties hereto. No unwritten oral agreement between the parties exists.

1.8 Accounting Terms. Accounting terms used herein and not otherwise specifically defined has the meaning ascribed to such terms by generally accepted accounting principles as from time to time in effect.

ARTICLE 2 REPRESENTATIONS

2.1 Representations by Lessee. As of the date hereof and as of the date of the commencement of each and every Renewal Term of this Lease, Lessee represents, warrants, covenants and affirms each of the following representations, as follows:

(a) Lessee is a municipal corporation duly organized pursuant to the Constitution and laws of the State of Wyoming with full power and authority to enter into each of the Transaction Documents and the transactions contemplated hereby and to perform all of its obligations hereunder;

(b) The lease of the Leased Property by Lessor to Lessee, as provided in this Lease, is necessary, desirable and in the public interest, and Lessee hereby declares its current need for the Leased Property;

(c) Lessee has duly authorized the execution and delivery of each of the Transaction Documents by proper action by its governing body at a meeting duly called, regularly convened and attended throughout by the requisite majority of the members thereof or by other appropriate official approval, and all requirements have been met and procedures have occurred in order to ensure the validity and enforceability of each of the Transaction Documents;

(d) Neither the execution and delivery of any Transaction Document, nor the fulfillment of or compliance with the terms and conditions thereof, nor the consummation of the transactions contemplated thereby, conflicts with or results in a breach of the terms, conditions or provisions of any restriction or any agreement or instrument to which Lessee is a party or by which Lessee is bound;

(e) There is no proceeding pending or threatened in any court or before any governmental authority or arbitration board or tribunal challenging the validity of the authorization or the power or authority of Lessee to enter into any Transaction Document or the validity or enforceability of any Transaction Document or which, if adversely determined, would adversely affect the transactions contemplated by any Transaction Document or the interest of Lessor or its assigns under any Transaction Document;

(f) Lessee has not made, done, executed or suffered, and warrants that it will not make, do, execute or suffer, any act or thing whereby Lessee's interests in any property now or hereafter included in the Leased Property is or may be impaired, changed or encumbered in any manner whatsoever, except as contemplated by this Lease;

(g) No event or condition that constitutes, or with the giving of notice or the lapse of time or both would constitute, an Event of Default exists at the date hereof;

(h) Lessee has, in accordance with the requirements of law, fully budgeted and appropriated sufficient funds for the current Fiscal Year to make the Rental Payments scheduled to come due during the Original Term, and to meet its other obligations for the Original Term, and such funds have not been expended for other purposes;

(i) Lessee will do or cause to be done all things necessary to preserve and keep in full force and effect its existence as a municipal corporation;

(j) Lessee has not made, done, executed or suffered, and warrants that it will not make, do, execute or suffer, any act or thing whereby Lessor's interests in any property now or hereafter included in the Leased Property is or may be impaired, changed or encumbered in any manner whatsoever except as permitted by this Lease;

(k) Lessee represents and warrants that the Leased Property complies with all applicable laws, codes, statutes, standards, regulations and ordinances or the Leased Property complied with such laws when it was constructed and because it was grandfathered in is a valid non-conforming use and Lessee further represents and warrants that no notices have been received of violations affecting the Leased Property which have not been corrected;

(l) Lessee further acknowledges its continuing responsibility to comply with all applicable laws, regulations and ordinances and to cure, at Lessee's expense, all violations relating to the Leased Property;

(m) Lessee represents and warrants that Lessee has received no actual or constructive notice of any condemnation of the Leased Property or any eminent domain proceedings or negotiations for the purchase of the Leased Property, or any part, instead of condemnation and Lessee has taken no action to condemn the Leased Property itself and has no knowledge that Lessee has any intent to condemn the Leased Property in the future;

(n) Lessee represents and warrants that it has not performed and has not caused to be performed any work on the Leased Property which could give rise to any mechanic's or materialmen's liens. Lessee also represents and warrants that there are no unrecorded easements or agreements affecting the Leased Property; and

(o) Lessee represents and warrants that the financial statements delivered to Lessor include an accurate list of all debt obligations of the Lessee and during the term of this Lease, Lessee will not incur additional debt nor will Lessee pledge any interest in the 6th penny sales tax without Lessor's specific prior written consent, which may be withheld for any reason.

In the event the forgoing are not true and correct on the date hereof and on the date of the commencement of each and every Renewal Term of this Lease, then such event shall be an Event of Default, as defined below.

ARTICLE 3 GRANTING PROVISIONS; TERM

3.1 Granting of Leasehold. Lessor, by these presents, hereby rents, leases and lets the Leased Property unto Lessee, and Lessee hereby rents, leases and hires the Leased Property from Lessor for the Rental Payments and subject to the terms and conditions hereinafter set forth.

3.2 Lease Term. The Original Term will commence as of the date of delivery of this Lease and will terminate on the last day of Lessee's current Fiscal Year. The Lease Term may

be continued, at the option of Lessee, at the end of the Original Term or any Renewal Term for an additional one year Renewal Term upon delivery of a Renewal Certificate prior to the last day of a Fiscal Year; provided that the final Renewal Term will not extend beyond the final Rental Payment Date set forth on Exhibit A. The terms and conditions during any Renewal Term will be the same as the terms and conditions during the Original Term, except that the Rental Payments will be as provided on Exhibit A.

Lessee currently intends, subject to the provisions of Section 3.3, to continue this Lease through the Maximum Lease Termination Date and to pay the Rental Payments hereunder. So long as this Lease is in effect, the officer of the Lessee who is responsible for formulating budget proposals with respect to payments of Rental Payments and Additional Rent is hereby directed (i) to estimate the Rental Payments and Additional Rent payable in the next ensuing Fiscal Year prior to the submission of each annual budget proposal to Lessee's governing body; (ii) to include in each annual budget proposal submitted to Lessee's governing body the entire amount of Rental Payments scheduled to be paid which include without limitation the Additional Rentals estimated to be payable during the next ensuing Fiscal Year; it being the intention of Lessee that any decision to appropriate Rental Payments and to renew this Lease will be made solely by Lessee's governing body, in its sole discretion, and not by any other department, agency or official of the City; and (iii) after such appropriation and renewal, to deliver or cause to be delivered a Renewal Certificate in the form attached as Exhibit C hereto to the Lessor by June 30 of that Fiscal Year.

3.3 Nonappropriation/Surrender/Holdover. Lessee is obligated only to pay such Rental Payments (as well as any Additional Rent) under this Lease as may lawfully be made from funds budgeted and appropriated for that purpose during Lessee's then current Fiscal Year. Should Lessee fail to budget, appropriate or otherwise make available funds sufficient to pay Rental Payments following the then current Original Term or Renewal Term, this Lease will be deemed terminated at the end of the then current Original Term or Renewal Term and all of Lessee's obligations hereunder that have not yet accrued within the same Original Term or Renewal Term are terminated. Lessee agrees to deliver notice to Lessor of such termination at least 90 days prior to the end of the then current Original Term or Renewal Term, but failure to give such notice will not extend the term beyond such Original Term or Renewal Term unless a Renewal Certificate is delivered. Lessee represents that such 90 day notice period will be sufficient time to vacate the premises leaving it in broom clean condition in accordance with any surrender provisions in this Lease, which vacation will also include the vacation of any subtenants occupying space under any subleases entered into under the terms of this Lease. Termination in accordance with this Section does not constitute a Default or Event of Default. If this Lease is terminated in accordance with this Section, Lessee agrees to immediately transfer possession of the Leased Property to Lessor. In the event Lessee fails to immediately transfer possession of the Leased Property to Lessor upon termination of this Lease (any such additional time shall be referred to as the "Holdover Term"), the parties agree that the damages to Lessor are difficult to determine, so the parties hereby stipulate that damages in an amount equal to 200% of the stated Rental Payment shall be paid to Lessor during any such Holdover Term, plus all of Lessor's legal fees and costs to collect such amounts from Lessee, unless and until all amounts to fully pay the Rental Payments shown on Exhibit A plus the Purchase Price shown on Exhibit A, plus all fees and costs related to collection of the same, including attorneys' fees and costs are paid.

3.4 Use of Premises. Lessee has the right to use the Leased Property for any essential governmental or proprietary purpose of Lessee, subject to the limitations contained in the Transaction Documents.

ARTICLE 4

PROVISIONS FOR PAYMENT OF RENTALS

4.1 Rental Payments. Lessee will promptly make Rental Payments, exclusively from legally available funds, in lawful money of the United States of America to Lessor on each Rental Payment Date, in an amount equal to (collectively the “Rental Payment”):

- (a) the Additional Rent described below, plus
- (b) the minimum Principal Portion repayment shown on Exhibit A, plus
- (c) the Interest Portion based on the actual interest accrued at the then current Interest Rate charged on the Principal Portion then outstanding, which actual interest accrued shall be shown on the Invoice (as defined below) and billed to Lessee prior to the due date, plus
- (d) the Non-Use Fee on the Available Principal Portion which has not been advanced to Lessee as of the Rental Payment Date, which Non-Use Fee shall be shown on the Invoice and billed to Lessee prior to the due date.

On or before the 15th day of the month preceding the Rental Payment Date, Lessor shall send a detailed statement (“Invoice”) which itemizes the Rental Payment due on the Rental Payment Date. By way of example, a chart of the estimated amount of Rental Payments is attached hereto as Exhibit A, based on estimated outstanding principal shown thereon, interest which is accruing at an 0.845% Interest Rate, estimated amounts for Additional Rent and estimated Non-Use Fee included. Such amounts are only for illustration purposes and the actual amount due shall be the amount shown on the Invoice from Lessor. Failure of Lessor to send the Invoice to Lessee shall not be a default under this Lease and shall not relieve Lessee from its obligation to make the Rental Payments, provided however that Lessee shall have 10 Business Days from receipt of an Invoice to pay the amounts noted thereon. In the event Lessee fails to timely make any Rental Payment when due, a late fee (“Late Fee”) will accrue on unpaid amounts at the rate of 10% per annum or the maximum amount permitted by law, whichever is less, which Late Fee shall accrue on the entire Rental Payment due, from such due date until paid. A portion of each Rental Payment represents the payment of interest.

4.2 Additional Rent. Lessor will pay: (i) all Impositions (as defined in ARTICLE 6); (ii) all gas, water, steam, electricity, heat, power, cable, telephone and other utility charges (“Utility Charges”) incurred in connection with the Leased Property; (iii) all insurance (“Insurance Premiums”) required to be maintained under ARTICLE 7; and (iv) all maintenance obligations required to be paid or performed by Lessor under ARTICLE 9; and (v) all other amounts to be reimbursed to Lessor by Lessee which are specified in the Transaction Documents, and such amounts will be charged to Lessee as additional rent (collectively “Additional Rent”).

(a) Prior to each Rental Payment Date, Lessor shall calculate the amount of Additional Rent due on the Rental Payment Date and shall include such amount on the Invoice which Additional Rent shall be based on: (i) the most recent invoices for any Impositions that will be due and payable on or before the next Rental Payment Date; (ii) the Utility Charges that have been billed or paid by Lessor for each of the utilities described in clause (ii) of Section 4.2 of this Lease; and (iii) the most recent invoices for Insurance Premiums for insurance carried with the provider of each type of insurance described in ARTICLE 7 of the Lease or shown on Exhibit F of the PSA. With respect to Insurance Premiums, Lessor shall obtain a quote for the Premiums for a specified maximum dollar amount for coverage, payable either on a specified day of the Fiscal Year for the annual renewal or payable in monthly installments during the year.

(b) If the amounts shown on the Invoice do not equal the exact amounts for the Additional Rent paid or other amounts payable by Lessor and related to the Leased Property, which amounts are determined pursuant to subsection (a) of this Section 4.2, together with any other fees, costs or expenses of Lessor relating to the ownership or operation of the Leased Property or the construction, acquisition or installation of the Project (the “Lessor Expenses”), Lessor may deliver a supplemental Invoice with the corrected amounts for Lessor Expenses which are due and payable within 10 Business Days of receipt of the supplemental Invoice. If the Rental Payment is in excess of the amount due for Lessor Expenses, Lessor shall promptly refund any overpayment to Lessee. In lieu of sending an updated Invoice, Lessor may provide the updated amounts on the next Invoice delivered to Lessee as noted below.

(c) If, notwithstanding the provisions of subsections (a) and (b) of this Section 4.2, Lessor at any time during a Fiscal Year determines that the sum of the Lessor Expenses that have already been invoiced to Lessee on prior Rental Payment Dates is incorrect, Lessor shall update the Invoice for the following Rental Payment Date to increase or decrease the amount due to Lessor for Additional Rent payable on such Rental Payment Date in an amount equal to the difference between the prior estimated dollar amount of Additional Rent and the actual amount due.

(d) In addition, Lessee will pay as Additional Rent any and all claims, demands, liabilities and costs, including without limitation attorneys’ fees, arising from (a) any “release” (as defined in 42 U.S.C. § 9601(22)) or threat of a “release,” actual or alleged, of any “hazardous substances” (as defined in 42 U.S.C. § 9601(14)) upon or about the Leased Property or respecting any products or materials previously or now located upon, delivered to or in transit to or from the Leased Property regardless of whether such release or threat of a release or alleged release or threat of release has occurred prior to the date hereof and hereafter occurs and regardless of whether such release or threat of a release or alleged release or threat of a release occurs as the result of the negligence or misconduct of Lessee or any third party or otherwise, or (b) any violation, actual or alleged, of or any other liability wider or in connection with any law, statute, ordinance, rule or regulation of any governmental or quasi-governmental authority, specifically including without limitation the Resource Conservation and Recovery Act and the Comprehensive Environmental Response Compensation and Liability Act, both as amended, or any other environmental protection or toxic waste or hazardous substance handling, treatment, storage or disposal laws, statutes, ordinances, rules or regulations upon or about the Leased Property or respecting any products or materials previously or now located upon, delivered to or in transit to or from the Leased Property, regardless of whether such violation or alleged

violation has occurred prior to the date hereof or hereafter occurs and regardless of whether such violation or alleged violation occurs as a result of the negligence or misconduct of Lessee or any third party or otherwise. Notwithstanding the foregoing, Lessee will not be obligated to pay any claims, demands, liabilities and costs, including without limitation attorneys' fees, that arise solely as a result of the negligence or misconduct of Lessor.

(e) Notwithstanding any other provision hereof, if at any time the Lessee, in its sole judgment, determines that Lessee would like to pay any of the Lessor Expenses directly to the utility, service provider or taxing authority the Lessee may, upon written notice to Lessor, pay such cost directly to such utility, service provider or taxing authority and shall send a copy of invoices and evidence of payment to Lessor when such items are paid.

4.3 Rentals Constitute Current Expense. The obligation of Lessee to pay the Rental Payments, which includes (i) the Additional Rent, (ii) the Minimum Principal Portion shown on Exhibit A, (iii) the Interest Portion, which accrues on the aggregate amount of the Acquisition Price that has been advanced to the Lessee pursuant to the PSA, and accrues at the Interest Rate defined on Exhibit A, (iv) the Non-Use Fee, which is defined on Exhibit B, and (v) any other amounts payable hereunder is subject to the provisions of Section 3.3, constitutes a current expense of Lessee and does not constitute a general obligation, legal, moral or otherwise or indebtedness of Lessee for which Lessee is obligated to levy or pledge any form of taxation or for which Lessee has levied or pledged any form of taxation; such obligation will not be construed to be a debt of Lessee in contravention of any applicable constitutional or statutory limitation or requirement, but in each Fiscal Year will be payable solely from the amounts budgeted or appropriated therefor out of the income and revenue provided for such Fiscal Year, any proceeds of the Leased Property and the Net Proceeds of any insurance or condemnation awards. No provision of this Lease will be construed or interpreted (i) to directly or indirectly obligate the Lessee to make any payment in any Fiscal Year in excess of amounts appropriated for such Fiscal Year; (ii) as creating a debt or multiple fiscal year direct or indirect debt or other financial obligation whatsoever of the Lessee; (iii) as a delegation of governmental powers by the Lessee; (iv) as a loan or pledge of the credit or faith of the Lessee or as creating any responsibility by the Lessee for any debt or liability of any person, company or corporation; or (v) as a donation or grant by the Lessee to, or in aid of, any person, company or corporation. Lessee will be under no obligation whatsoever to exercise its option to purchase the Leased Property or renew this Lease and no provision of this Lease will be construed to pledge or to create a lien on any class or source of moneys of Lessee.

4.4 Rental Payments Payable Without Abatement or Set-Off; Lessee's Obligations. Subject to the provisions of Section 3.3, Lessee covenants and agrees that all payments of the Rental Payments will be made by Lessee on or before the date the same become due, and Lessee will perform all of its other obligations, covenants and agreements hereunder (including the obligation to pay Rental Payments) without notice or demand and without abatement, deduction, setoff, counterclaim, recoupment or defense or any right of termination or cancellation arising from any circumstance whatsoever, whether now existing or hereafter arising.

Nothing in this Lease will be construed as a waiver by Lessee of any rights or claims Lessee may have against Lessor under this Lease or otherwise, but any recovery upon such rights and claims will be from Lessor separately, it being the intent of this Lease that Lessee will be

unconditionally and absolutely obligated to perform fully all of its obligations, agreements and covenants under this Lease, including its obligation to pay Rental Payments, subject to the provisions of Section 3.3. Lessee may, however, at its own cost and expense and in its own name or in the name of Lessor, prosecute or defend any action or proceeding or take any other action involving third persons which Lessee deems reasonably necessary in order to secure or protect its right of possession, occupancy and use hereunder, and in such event Lessor hereby agrees to cooperate fully with Lessee and to take all action necessary to effect the substitution of Lessee for Lessor in any such action or proceeding if Lessee so requests.

4.5 Prepayment of Rental Payments. Lessee may at any time prepay all or any part of the Rental Payments provided for hereunder.

ARTICLE 5 FINANCIAL STATEMENTS AND INFORMATION

5.1 Financial Statements and Other Information.

(a) Within 180 days after the end of each Fiscal Year, Lessee shall furnish to Lessor (i) audited financial statements of Lessee for such Fiscal Year, prepared by an independent certified public accountant prepared in accordance with generally accepted accounting principles, consistently applied, in reasonable detail and certified by such independent public accountant; (ii) annual report of maintenance and improvements completed at the Leased Property with a schedule of upcoming maintenance and improvements for the following year and the estimated budget for completion of the same;

5.2 Financial Covenants. So long as the Lease has not be terminated for any reason, Lessee shall comply with the following financial covenants ("Financial Covenants"):

(a) Collection of 6th Penny Sales Tax. Lessee covenants and agrees, in accordance with the provisions of the act ("Act") which permitted the imposition and collection of the 6th Penny Sales Tax (as defined in the PSA) to be collected by the Lessee, that the Lessee shall collect or cause to be collected the 6th Penny Sales Tax so that the revenues from such 6th Penny Tax may be used to pay the Rental Payments due under this Lease.

(b) No Impairment of Collection. Lessee covenants and agrees not to take any action or omit to take any action to reduce, impair, repeal or otherwise adversely impact the imposition, administration, enforceability and collectability of the 6th Penny Sales Tax or any revenues collected therefrom.

(c) Prompt Collections. Lessee will cause the revenues from the 6th Penny Sales Tax to be collected promptly by State and disbursed to and held by Lessee, without encumbrance by any other party for the payment of amounts due under the Lease, subject to the provisions of the Act and the constitution and laws of the State.

(d) Instruments of Further Assurance. The Lessee covenants that it will do, execute, acknowledge and deliver, or cause to be done, executed, acknowledged and delivered, and such further acts, instruments and transfers as the Lessor may reasonably require for the

better assuring, transferring, conveying, pledging, assigning and confirming unto the Lessor all and singular the Lessee's interest in the property herein described and revenues from the 6th Penny Sales Tax, receipts and other amounts pledged for the payment of the Rental Payments due hereunder. The Lessee covenants and agrees that it has not and will not, except as herein otherwise expressly provided, sell, convey, mortgage, encumber or otherwise dispose of any part of its interest in the revenues from the 6th Penny Sales Tax unless or until the payment in full of the Rental Payments. Nothing in this section shall obligate or require the Lessee to prepare, record or file any indentures, instruments or other transfers related to the 6th Penny Sales Tax.

(e) Compliance Certificate. Within thirty (30) days following the end of each Fiscal Year, and following an Event of Default as often as monthly or quarterly as specified by Lessor, Lessee shall deliver to Lessor a compliance certificate ("Compliance Certificate") in the form attached hereto as Exhibit D signed by Lessor confirming compliance with the Financial Covenants in this Section 5.2 and attaching copies of such documentation as may be required to evidence compliance with the same. If any Compliance Certificate delivered to the Lessor discloses a breach of the Financial Covenants, Lessee shall be entitled to a grace period of ten (10) calendar days within which to deliver a replacement Compliance Certificate evidencing compliance with the Financing Covenants, failing which, Lessor shall be entitled to declare an Event of Default and shall have all rights and remedies set forth in this Lease and the other Transaction Documents, to which it is entitled upon the occurrence of an Event of Default.

5.4 Additional Information. Promptly upon request of Lessor, Lessee shall provide Lessor with such additional information about Lessee or the Leased Property as Lessor reasonably requests.

5.5 Other Reporting Requirements. Lessee shall provide to Lessor (a) copies of all permits required for completion of any Remodeling of the Leased Property, (b) certificates of insurance with respect to all insurance policies required pursuant to this Lease and Lessee shall maintain such insurance in full force and effect throughout the term of this Lease, and (c) whenever requested by Lessor, evidence that taxes and assessments, worker's compensation insurance, and all other bills that could result in a lien against the Leased Property are being promptly paid when due.

ARTICLE 6 IMPOSITIONS

6.1 Impositions. Lessor will bear, pay and discharge, before the delinquency thereof, as Additional Rent, all taxes and assessments, general and special, if any, which may be lawfully taxed, charged, levied, assessed or imposed upon or against or be payable for or in respect of the Leased Property, including any taxes and assessments not of the kind enumerated above to the extent that the same are lawfully made, levied or assessed in lieu of or in addition to taxes or assessments now customarily levied against real or personal property, and further including all water and sewer charges, assessments and other general governmental charges and impositions whatsoever, foreseen or unforeseen, which if not paid when due would impair the security of Lessor or encumber the Leased Property (all of the foregoing being herein referred to as

“Impositions”). Lessee shall reimburse Lessor as part of Additional Rent the actual costs incurred by Lessor for the Impositions as provided in Exhibit A.

6.2 Contest of Impositions. Lessor shall not allow any liens for taxes, assessments, other governmental charges or utility charges to exist with respect to any portion of the Leased Property or any rentals or other revenues herefrom, hereunder or otherwise. If Lessor shall first notify the Lessee of the intention of the Lessor to do so, Lessor may, however, in good faith contest any such Imposition, other governmental charge or utility charge and, in the event of any such contest, may permit the Imposition, other governmental charge or utility charge so contested to remain unpaid during the period of such contest and any appeal therefrom, unless the Lessee shall notify Lessor that, in the opinion of Lessee’s counsel, whose fees shall be paid by the Lessee, by nonpayment of any such item the Lessee’s use of the Leased Property will be materially interfered with or endangered or the Leased Property or any portion thereof will be subject to loss or forfeiture, in which event such Imposition, other governmental charge or utility charge shall be paid forthwith; provided, however, that such payment shall not constitute a waiver of the right to continue to contest such Imposition, other governmental charge or utility charge. At the request of Lessor, the Lessee will cooperate fully with the Lessor’s counsel in any such contest.

ARTICLE 7 INSURANCE; RISK OF LOSS

7.1 Insurance Required. Unless otherwise provided herein, Lessee will, during the Lease Term, cause the Leased Property to be kept continuously insured against such risks customarily insured against for facilities such as the Leased Property and Lessor will pay (except as otherwise provided herein), as the same become due, all premiums in respect thereof and Lessor shall charge back the cost of all such insurance to Lessee as part of the Additional Rent charged hereunder. Payment for this portion of Additional Rent may be made by Lessee directly to the insurance carrier so long as the Lessor is listed on the insurance as the insured party on the insurance required to be carried in this ARTICLE 7. Such insurance shall include the following policies of insurance:

(a) Commercial property insurance insuring the Leased Property against loss or damage by fire, lightning and all other risks in an amount not less than the lesser of an amount equal to the full replacement value thereof or the then applicable purchase price under Section 10.1 (subject to reasonable loss deductible clauses) issued by such insurance company or companies authorized to do business in the State as may be selected by Lessee. If the Leased Property is located in a 100-year flood plain or if changes in local flood plain designations cause the Leased Property to be located in a 100-year flood plain, Lessee will also obtain flood insurance against loss or damage by flood, with standard coverage. The full replacement value of the Leased Property will be reviewed by Lessee and its insurer annually in accordance with Lessee’s standard procedures. The policy or policies of such insurance will name Lessee and Lessor as insureds, and/or additional insureds and loss payees. All proceeds from such policies of insurance will be applied as provided in ARTICLE 11;

(b) Commercial general liability insurance, in an amount not less than \$1,000,000 per occurrence and \$1,000,000 per person;

(c) Workers' compensation and unemployment coverages to the extent, if any, required by the laws of the State;

(d) Lessee shall cause public liability insurance to be maintained with respect to the activities to be undertaken by Lessee in sufficient amounts to cover amounts for which Lessee may be liable to third parties under the Wyoming Governmental Claims Act, § 1-39-101 et seq., W.S. and sufficient amounts to cover amounts which Lessor may be liable to third parties for any and all of Lessee's activities undertaken at the Project. The Lessee and its officials and employees do not waive governmental immunity by entering into this Lease and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, et seq and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Lease as between the parties. Further, the Lessee fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Lease. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

(e) Owner's policy of title insurance, issued on ALTA forms by a title insurance underwriter acceptable to Lessor, insuring Lessor's fee simple estate, in the amount equal to at least \$18,000,000, subject only to exceptions acceptable to Lessor, with endorsements and affirmative coverages reasonably required by Lessor, including comprehensive, nonmerger, validity of sublease, survey or in the absence of a survey, location, access, and contiguity endorsements, and otherwise in form and substance satisfactory to Lessor.

Not less than 30 days prior to the expiration dates of the expiring policies, originals or copies of the policies required by this Section or certificates evidencing such insurance will be delivered by Lessee to Lessor. All policies of such insurance, and all renewals thereof, will contain a provision that such insurance may not be cancelled by the issuer thereof without at least ten days written notice to Lessee and Lessor.

Nothing in this Lease will be construed as preventing Lessee from satisfying the insurance requirements herein set forth by using blanket policies of insurance provided each and all of the requirements and specifications of this Lease respecting insurance are complied with.

7.2 Risk of Loss. Lessee assumes all risk of loss of or damage to the Leased Property from any cause whatsoever. No such loss of or damage to the Leased Property nor defect therein nor unfitness or obsolescence thereof will relieve Lessee of the obligation to make Rental Payments or to perform any other obligation under this Lease it being specifically understood that even a loss of access or use of the Leased Property shall not entitle Lessee to any abatement of Rental Payments for any reason.

ARTICLE 8

ASSIGNMENT AND SUBLEASING

8.1 Assignment by Lessor. Lessor's right, title and interest in, to and under this Lease and the Leased Property may be assigned and reassigned in whole or in part to one or more assignees or subassignees by Lessor without the necessity of obtaining the consent of Lessee; provided that any assignment will not be effective until Lessee has received written notice, signed by the assignor, of the name, address and tax identification number of the assignee. Lessee agrees to keep a record of all such notices of assignment and to execute all documents, including notices of assignment and financing statements that may be reasonably requested by Lessor or any assignee to protect its interests in the Leased Property and in this Lease. Following such assignment, Lessee will not have the right to and will not assert against any assignee any claim, counterclaim or other right Lessee may have against the former lessor.

8.2 Assignment and Subleasing by Lessee. None of Lessee's right, title and interest in, to and under this Lease and in the Leased Property or the Project may be assigned, sublet or encumbered by Lessee for any reason.

This covenant is a material part of this Lease because of Lessee's status as a political subdivision of the State and its ability to tax and assess generally in order to pay their obligations. The parties are entering into this Lease with the understanding that Lessor would not have entered into this Lease without the prohibition against assignment, subletting and encumbering by Lessee contained in this Section.

ARTICLE 9 MAINTENANCE, REPAIRS AND MODIFICATIONS

9.1 Maintenance, Repairs and Modifications. Following completion of the New Construction, Lessee will, at Lessor's expense (which expense will be added to the Additional Rent charged hereunder), maintain, preserve and keep both the structural and non-structural portions of the Leased Property, including without limitation all building systems, roofs, HVAC and parking areas, in good repair, working order and condition, and will from time to time make all repairs, replacements and improvements necessary to keep such structural and non-structural portions of the Leased Property in such condition. Lessor will have no responsibility for any repairs, replacements or improvements, except for payment of the cost and expense relating thereto as approved by Lessor in its reasonable discretion, which amounts will be charged back to Lessee as Additional Rent. In addition, Lessee will, at its own expense, have the right to remodel any interior non-structural portions of the Improvements or to make additions, modifications and improvements thereto. Any changes shall require the review and approval of the plans by Lessor prior to undertaking any such work at the Leased Property, which review and approval by Lessor may include and evaluation of value of the Leased Property before and after the completion of such changes, and unless completion of such changes increases the value of the Leased Property, Lessor may deny approval, in Lessor's reasonable discretion. The parties hereto acknowledge that the Plans for the New Construction (as defined in the PSA) have been reviewed and approved by Lessor prior to the Closing Date and the terms of the PSA shall govern the rights of the parties thereto with respect to completion of that work. Any repairs or improvements other than the New Construction, which is completed in accordance with the terms and provisions of this Section shall be completed by licensed, bonded and insured contractors, pursuant to written agreements for the work and Lessee shall, prior to commencing such work, provide to Lessor the full anticipated cost and expense for full completion and

payment for all such work, prior to commencement of any of the work and the parties shall mutual agree upon the mechanism to complete such work. Upon completion of such work, all such additions, modifications and improvements will thereafter comprise part of the Leased Property and be subject to the provisions of this Lease; provided, however, that Lessee may install at its own expense any furniture, furnishings, trade fixtures and business equipment and such furniture, furnishings, trade fixtures and business equipment (specifically excluding lighting fixtures and heating, ventilating and air conditioning equipment, wiring within conduits and any other fixtures installed at the Leased Property) will remain the property of Lessee and will not be subject to the provisions of this Lease. Such additions, modifications and improvements will not in any way damage the Improvements nor cause it to be used for purposes other than those permitted by this Lease and authorized under the provisions of municipal, state and federal law. The Leased Property, upon completion of any additions, modifications and improvements made pursuant to this Section, will be of a value which is equal to or greater than the value of the Leased Property immediately prior to the making of such additions, modifications and improvements. Any property for which a substitution or replacement is made pursuant to this Section may be disposed of by Lessee in such manner and on such terms as are determined by Lessee. Lessee will not permit any mechanic's or other lien to be established or remain against the Leased Property for labor or materials furnished in connection with any Remodeling, repairs or cleaning performed by Lessee and approved by Lessor pursuant to this Section; provided that if any such lien is established, Lessor or Lessee may each separately or together, in good faith contest any lien filed or established against the Leased Property, and in such event if required by Lessor will bond over the items so contested and unsatisfied during the period of such contest and any appeal therefrom so that the Leased Property at all times remains lien free unless Lessee provides other adequate protection to Lessor, in Lessor's reasonable discretion to protect Lessor and the leased Property against any loss or forfeiture, in form satisfactory to Lessor. In the event Lessor is named in any action, suit or proceeding related to mechanic's or materialmen's liens, Lessee will cooperate fully with Lessor in any such contest, upon request and at the expense of Lessor, which expenses may be charged back to Lessee as part of the Additional Rent charged hereunder.

9.2 Liens. Lessee will not, directly or indirectly, create, incur, assume or suffer to exist any mortgage, pledge, lien, charge, encumbrance or claim on or with respect to the Leased Property, other than the respective rights of Lessor and Lessee as provided herein. Except as expressly provided in this ARTICLE 9, Lessee will promptly, at its own expense, take such action as may be necessary to duly discharge or remove any such mortgage, pledge, lien, charge, encumbrance or claim if the same arises at any time. Lessee will reimburse Lessor for any expense incurred by it in order to discharge or remove any such mortgage, pledge, lien, charge, encumbrance or claim.

ARTICLE 10

LESSEE'S OPTION TO PURCHASE THE PROJECT

10.1 Lessee's Option to Purchase the Leased Property. Lessee will have the option to purchase Lessor's interest in the Leased Property, upon giving written notice to Lessor at least 30 days before the date of purchase on the Rental Payment Date Lessee specifies as the purchase date in Lessee's notice to Lessor of its exercise of the purchase option, upon payment in full of the Rental Payment then due hereunder plus all remaining principal portions of Rental Payments

set forth on Exhibit A, plus such Additional Rent for any Impositions, Insurance Premiums, Utility Charges already incurred but not yet paid to Lessor by Lessee prior to the date of exercise of this option, plus the Purchase Price set forth on Exhibit A to Lessor.

10.2 Determination of Fair Rental Payment and Purchase Price. Lessee and Lessor hereby agree and determine that the Rental Payment hereunder during the Original Term and any Renewal Term represent the fair value of the use of the Leased Property and that the amount required to exercise Lessee's option to purchase Lessor's interest in the Leased Property pursuant to Section 10.1 represents, as of the end of the applicable Rental Payment Date, the fair purchase price of the Leased Property. Lessee hereby determines that the Rental Payments do not exceed a reasonable amount so as to place Lessee under an economic practical compulsion to renew this Lease or to exercise its option to purchase the Leased Property hereunder. In making such determinations, Lessee and Lessor have given consideration to the value of the Leased Property, the uses and purposes for which the Leased Property is and will be employed by Lessee, the benefit to Lessee of the use and occupancy of the Leased Property pursuant to the terms and provisions of this Lease and Lessee's option to purchase the Leased Property. Lessee hereby determines and declares that the Maximum Lease Termination Date does not exceed the useful life of the Project.

ARTICLE 11

DAMAGE, DESTRUCTION AND CONDEMNATION; USE OF NET PROCEEDS

11.1 Damage, Destruction and Condemnation. Unless Lessee has exercised its option to purchase the Leased Property and terminate this Lease as provided in ARTICLE 10, if (i) any component of the Leased Property is destroyed (in whole or in part) or is damaged by fire or other casualty or (ii) title to or the temporary use of such component of the Leased Property or the interest of Lessee or Lessor in the component of the Leased Property, is taken under the exercise of the power of eminent domain, or the threat of such exercise, by any governmental body or by any person, firm or corporation acting under governmental authority, Lessee will cause the Net Proceeds of any insurance or condemnation award or any sale under threat of condemnation to be applied to the prompt replacement, repair, restoration, modification or improvement of the Leased Property by Lessee. Any balance of the Net Proceeds remaining after such work has been completed will be held and appropriated by Lessee for the exclusive purpose of paying Rental Payments under this Lease.

If Lessee determines that the replacement, repair, restoration, modification or improvement of the Leased Property is not economically feasible or in the best interest of Lessee, then, in lieu of making such replacement, repair, restoration, modification or improvement and if permitted by law, Lessee will promptly purchase the Leased Property by paying the Purchase Price to Lessor and such Net Proceeds will be applied by Lessee to such payment to the extent required for such payment. Any balance of the Net Proceeds remaining after paying the Purchase Price to Lessor will belong to Lessee.

11.2 Insufficiency of Net Proceeds. If the Net Proceeds are insufficient to pay in full the cost of any repair, restoration, modification or improvement of any component of the Leased Property in accordance with Section 11.1, subject to appropriation of sufficient funds, Lessee will complete the work and pay any cost in excess of the amount of the Net Proceeds, and Lessee

agrees that if by reason of any such insufficiency of the Net Proceeds Lessee will make any payments pursuant to the provisions in this Section 11.2, Lessee will not be entitled to any reimbursement therefor from Lessor or to any reduction in Rental Payments then due or thereafter coming due.

11.3 Cooperation of Lessor. Lessor will cooperate fully with Lessee, at the expense of Lessee, in filing any proof of loss with respect to any insurance policy covering the events described in Section 11.1 and in the prosecution or defense of any prospective or pending condemnation proceeding with respect to the Leased Property or any part thereof and will, to the extent it may lawfully do so, permit Lessee to litigate in any proceeding resulting therefrom in the name of and on behalf of Lessor. In no event will Lessor voluntarily settle, or consent to the settlement of, any proceedings arising out of any insurance claim or any prospective or pending condemnation proceeding with respect to the Leased Property or any part thereof without the written consent of Lessee.

ARTICLE 12 DEFAULT PROVISIONS

12.1 Events of Default Defined. The following will be “Events of Default” under this Lease and the term “Events of Default” means, whenever it is used in this Lease, any one or more of the following events:

- (a) Failure by Lessee to pay any Rental Payment or other payment required to be paid hereunder within the timeframe specified for payment herein;
- (b) Failure by Lessee to observe and perform any covenant, condition or agreement under any Transaction Document on its part to be observed or performed, other than as referred to in clause (a) of this Section, for a period of 30 days after written notice specifying such failure and requesting that it be remedied has been given to Lessee by Lessor; provided, however, if the failure stated in the notice cannot be corrected within the applicable period, Lessor will consent to an extension of such time if Lessee certifies that corrective action has been instituted by Lessee within the applicable period and will be diligently pursued until such failure is corrected;
- (c) Failure by Lessee to timely deliver the financial statements in accordance with Section 5.1 or to comply with the Financial Covenants described in Section 5.2;
- (d) Any statement, representation or warranty made by Lessee in or pursuant to any Transaction Document or any instrument or certificate related thereto or to the Leased Property is incorrect, untrue or misleading in any material respect;
- (e) Any provision of any Transaction Document is at any time for any reason cease to be valid and binding on Lessee, or is declared to be null and void, or the validity or enforceability thereof is contested by Lessee or any governmental agency or authority if the loss of such provision would materially adversely affect the rights or security of Lessor, or Lessee denies that it has any further liability or obligation under this Lease;

(f) The filing of a lien or other encumbrance against the Leased Property, by any party, and Lessee fails to obtain a release or post a bond or other security satisfactory to Lessor in compliance with Section 9.1 of this Lease;

(g) Lessee shall file a voluntary petition in bankruptcy or such a petition shall be filed against Lessee or if Lessee shall file any petition or answer seeking or acquiescing in any reorganization, arrangement, composition, readjustment, liquidation, dissolution or similar relief for itself under any present or future federal, state or other statute, law or regulation relating to bankruptcy, insolvency or other relief for debtors; or shall seek or consent to or acquiesce in the appointment of any trustee, receiver or liquidator of Lessee or of all or any part of the Leased Property or shall make any general assignment for the benefit of creditors, or shall admit in writing its inability to pay its debts generally as they become due.

(h) A court of competent jurisdiction shall enter an order, judgment or decree approving a petition filed against Lessee seeking any reorganization, dissolution or similar relief under any present or future federal, state or other statute, law or regulation relating to bankruptcy, insolvency or other relief for debtors or any trustee, receiver or liquidator of Lessee or of all or any part of the Leased Property shall be appointed without the consent or acquiescence of Lessee;

(i) The actual or attempted conveyance, assignment, transfer, mortgage, pledge, encumbrance, hypothecation or other disposition of the Leased Property or Lessee's rights under this Lease;

(j) Lessee fails to maintain the Leased Property in accordance with the terms and provisions of this Lease;

(k) Lessee fails to keep the Leased Property in compliance with all federal, state and local laws, rules, regulations applicable to the Leased Property;

(l) If the Lessee is in default under any note, indenture, loan agreement, guaranty, swap agreement or any other material contract or lease to which it is a party, which default (i) involves failure to pay a matured obligation, or (ii) permits the acceleration of the maturity of obligations by any other party to or beneficiary of such note, indenture, loan agreement, guaranty, swap agreement or material contract or lease; provided that for purposes of this provision "material contract or lease" shall mean contracts or agreements for property, goods or services entered into by Lessee which default would be characterized as a contingent liability on Lessee's financial statements and the amount represented by such contingent liability would be a material adverse change in the financial condition of the Lessee;

(m) If there occurs a default or Event of Default by Lessee under any other loan documents or leases in connection with any extension of financial accommodations by Lessor to Lessee;

(n) There occurs any Material Adverse Occurrence.

12.2 Remedies. Whenever any Event of Default has happened and is continuing, Lessor has the right, at its option and without any further demand or notice, to take any one or more of the following remedial steps:

(a) By written notice to Lessee, Lessor may declare all Rental Payments and other amounts payable by Lessee hereunder to the end of the then current Original Term or Renewal Term to be due;

(b) With or without terminating this Lease, take possession of the Leased Property, sell Lessor's interest in the Leased Property and collect the rentals therefor for all or any portion of the remainder of its leasehold term upon such terms and conditions as it may deem satisfactory in its sole discretion, with Lessee remaining liable for the difference between the Rental Payments and other amounts payable by Lessee hereunder during the Original Term or then current Renewal Term, as the case may be, and the net proceeds of any purchase price, rents or other amounts paid by the purchaser, new lessee or sublessee of the Leased Property, and, provided further, that, in such event, if Lessor will receive a payment for sale of its interest or total Rental Payments for lease of the Leased Property that are, after payment of Lessor's expenses in connection therewith, in excess of the then applicable Purchase Price, then such excess will be paid to Lessee either by Lessor, its assigns, or by its sublessee; or

(c) Take whatever action at law or in equity may appear necessary or desirable to collect the Rental Payments then due and thereafter to become due during the then current Original Term or Renewal Term, or enforce performance and observance of any obligation, agreement or covenant of Lessee under this Lease.

12.3 No Remedy Exclusive. No remedy herein conferred upon or reserved to Lessor is intended to be exclusive and every such remedy will be cumulative and will be in addition to every other remedy given under this Lease or now or hereafter existing at law or in equity. No delay or omission to exercise any right or power accruing upon any default will impair any such right or power or will be construed to be a waiver thereof, but any such right and power may be exercised from time to time and as often as may be deemed expedient. In order to entitle Lessor or Lessee to exercise any remedy reserved to it in this Article it will not be necessary to give any notice, other than such notice as may be required in this Article or by law.

12.4 No Additional Waiver Implied by One Waiver. In the event any agreement contained in this Lease is breached by either party and thereafter waived by the other party, such waiver will be limited to the particular breach so waived and will not be deemed to waive any other breach hereunder.

ARTICLE 13

AMENDMENTS, CHANGES AND MODIFICATIONS

13.1 Amendments, Changes and Modifications. This Lease may be amended, changed or modified in any manner by written agreement of Lessor and Lessee. Any waiver of any provision of this Lease or any right or remedy hereunder must be affirmatively and expressly made in writing and will not be implied from inaction, course of dealing or otherwise.

ARTICLE 14 MISCELLANEOUS

14.1 Maintenance of Tax Exemption. Lessee will not take any action or fail to take any action, which action or failure would cause the Interest Portion to fail to be excludable from gross income of the Lessor for federal income tax purposes. Lessee will comply with the provisions of the Tax Compliance Certificate and all applicable provisions of the Code and the regulations of the Treasury Department thereunder from time to time proposed or in effect in order to maintain the excludability of the Interest Portion from gross income of the recipient thereof for federal income tax purposes.

14.2 Notices. All notices, requests, consents, approvals, waivers and other communications shall be in writing and mailed, faxed or delivered to the address or facsimile number specified below (provided, however, that any matter transmitted to Lessor by facsimile (i) shall be promptly confirmed by a telephone call to Lessor at the number specified below and (ii) shall be followed promptly by delivery of a hard copy original thereof) or to such other address or facsimile number as shall be designated by a party in a written notice to the other party.

If to Lessor: U.S. Bank National Association
Government Banking
101 East 5th Street, 9th Floor
St. Paul, MN 55101-1860
Attention: Susan Moses, Vice President
Telephone No. (651) 466-8601
Facsimile No. (612) 210-8944

With copy to: Perkins Coie LLP
1900 - 16th Street, Suite 1400
Denver, CO 80202
Attention: Karen Samuels Jones, Esq.
Telephone No. (303) 291-2319
Facsimile No. (303) 291-2419

If to Lessee: City of Cheyenne, Wyoming
City Treasurer's Office
2101 O'Neil Avenue
Cheyenne, WY 82001
Attention: Lois Huff, City Treasurer
Telephone No. (307) 637-6336
Email: lhuff@cheyennecity.org
Facsimile No. N/A

With copy to: City Attorney's Office
City of Cheyenne, Wyoming
2101 O'Neil Avenue
Cheyenne, WY 82001
Attention: Daniel White, City Attorney
Telephone No. (307) 637-6309
Email: DWhite@cheyennecity.org
Facsimile No. N/A

All such notices, requests and communications shall, when transmitted by overnight delivery, or faxed, be effective when delivered for overnight (next day) delivery, or transmitted in legible form by facsimile machine, respectively, or if mailed, upon receipt by the addressee, or if delivered, upon delivery.

Any agreement of Lessor to receive certain notices by telephone or facsimile is solely for the convenience and at the request of Lessee. Lessor shall be entitled to rely on the authority of any person purporting to be a person authorized to give such notice and Lessor shall not have any liability to Lessee or other person on account of any action taken or not taken by Lessor in reliance upon such telephonic or facsimile notice.

14.3 Mutual Indemnity. Mutual Indemnification.

(a) Definitions. For all purposes of this Lease, a "Claim" shall mean any and all claims, damages, demands, defenses, counterclaims, actions, proceedings, liabilities, judgments, losses, penalties, fines or expenses (including, without limitation, reasonable attorneys' fees). For all purposes of this Lease, any Claim for which a party (the "Indemnifying Party") is obligated to indemnify the other party and its Related Parties (collectively, the "Indemnified Party") under this Lease is referred to as an "Indemnity Claim". For all purposes of this Lease, the term "Related Parties" shall mean the Lessee's or Lessor's respective (as the case may be) affiliates, its and its affiliates' respective officers, directors, shareholders, partners, members, managers, agents, employees and attorneys, and the legal representatives, heirs, successors and assigns of all of the foregoing.

(b) Indemnity. To the extent permitted by law, Lessor and Lessee shall each indemnify, defend and hold the other and its Related Parties harmless from and against any and all Claims (i) for personal injury, death or property damage occasioned by any act or omission of the Indemnifying Party, its agents, or employees occurring in, about or on the Leased Property, and (ii) for any breaches of this Lease by the Indemnifying Party. The indemnifications contained in this Lease shall survive the expiration or termination of this Lease. Neither party hereto shall have any obligation under this Section 14.3 to indemnify the other party for a matter arising out of a breach by the Indemnified Party of its obligations under this Lease. Neither party shall have obligations under clause (i) of this Section 14.3(b) unless notified in writing of any Claim within one hundred twenty (120) days of receipt by the other party of notice of such Claim. In addition, in the event any Claim pursuant to clause (i) above for which Lessor is liable has a material adverse effect upon Lessee's use of the Leased Property, Lessee shall have the right to terminate this Lease upon thirty (30) days prior written

notice to Lessor unless Lessor promptly remedies the condition relating to such Claim within said thirty (30) days.

(c) Procedures Related to Third Party Claims. In the event that any Indemnity Claim shall be asserted by any third party in respect of which an Indemnified Party is entitled to receive indemnity from an Indemnifying Party, the Indemnified Party shall promptly cause written notice of the assertion of the Indemnity Claim to the extent it has knowledge thereof to be forwarded to the Indemnifying Party. The Indemnifying Party, at its own expense and to the extent of its indemnification, by counsel of its choice reasonably satisfactory to the Indemnified Party, shall defend the Indemnified Party against, and negotiate, settle, or otherwise deal with the Indemnity Claim; provided, however, that no settlement shall be made without the prior written consent of the Indemnified Party, which consent shall not be unreasonably withheld, conditioned or delayed; and provided further that the Indemnifying Party shall keep the Indemnified Party reasonably advised as to the status of the matter. The Indemnified Party may participate in any such proceeding with counsel of its choice at its expense. If the Indemnified Party refuses to approve a proposed settlement that is acceptable to the claimant, the Indemnifying Party may, at its option, deposit the proposed settlement with the Indemnified Party and thereupon be relieved of any further indemnity obligation in connection with such claim, including, but not limited to, attorneys' fees and expenses thereafter incurred. The parties hereto agree to cooperate fully with the defense, negotiation, or settlement of any such legal proceeding, claim or demand, but without expense to the Indemnified Party.

(d) Payment of Indemnified Amounts. After any final judgment or award shall have been rendered by a court, arbitration board or administrative agency of competent jurisdiction, and the expiration of the time in which to appeal therefrom, or after a final settlement shall have been consummated, or after the parties shall have arrived at a mutually binding agreement with respect to each separate matter indemnified hereunder (collectively the "Finalization Date"), any amounts due and owing from one party to the other on account thereof shall be paid within thirty (30) days following the Finalization Date upon notice of the amount due.

14.4 Further Assurances. Within thirty (30) days of written request by Lessor, Lessee shall duly execute and deliver or cause to be duly executed and delivered to Lessor such further instruments, agreements and documents and do or cause to be done such further acts as may be necessary or proper in the reasonable opinion of Lessor to carry out more effectively the provisions and purpose of this Lease and the other Transaction Documents.

14.5 Nature of Relationship. Lessor and Lessee intend that the relationship between them shall be solely that of landlord and tenant. Nothing in this Lease or the other Transaction Documents shall be construed to create a partnership or any other relationship which would make Lessor in any way responsible or liable for the debts, losses, obligations or duties of Lessee.

14.6 Governing Law. Except to the extent that the federal laws of the United States of America provide Lessor with greater rights or remedies, this Lease shall be governed by the laws of the State of Wyoming.

14.7 Consent to Jurisdiction and Venue. Lessee hereby (a) irrevocably submits to the jurisdiction of any state court sitting in Laramie County, Wyoming or federal court sitting in the City of Cheyenne, Wyoming, in any action or proceeding brought to enforce, or otherwise arising out of or relating to, this Lease; (b) irrevocably waives to the fullest extent permitted by law any objection that Lessee may now or hereafter have to the laying of venue in any such action or proceeding in any such forum; and (c) further irrevocably waives any claim that any such forum is an inconvenient forum. Lessee agrees that a final judgment in any such action or proceeding shall be conclusive and may be enforced in any other jurisdiction by suit on the judgment or in any other manner provided by law. Nothing herein shall impair the right of Lessor to bring any action or proceeding against Lessee in any court of any other jurisdiction.

14.8 Transferable Record. This Lease and the other Transaction Documents are each a "transferable record" as defined in applicable law relating to electronic transactions. Therefore, Lessor may, on behalf of Lessee, create a microfilm or optical disk or other electronic image of this Lease and the other Transaction Documents that is an authoritative copy as defined in such law. Lessor may store the authoritative copy of this Lease and the other Transaction Documents in its electronic form and then destroy the paper original as part of Lessor's normal business practices. Lessor, on its own behalf, may control and transfer such authoritative copy as permitted by such law.

14.9 Patriot Act Notice. Lessor hereby notifies Lessee that pursuant to the requirements of the USA Patriot Act (Title III of Pub. L. 107-56 (signed into law October 26, 2001)), it is required to obtain, verify and record information that identifies Lessee, which information includes the names and addresses of Lessee and other information that will allow Lessor to identify Lessee in accordance with the U.S. Patriot Act, if required in accordance with applicable law.

14.10 JURY WAIVER. LESSEE HEREBY WAIVES ANY RIGHT TO TRIAL BY JURY OF ANY CLAIM ARISING OUT OF THIS LEASE OR ANY OTHER TRANSACTION DOCUMENT, WHETHER NOW OR HEREAFTER ARISING AND WHETHER SOUNDING IN CONTRACT, TORT OR OTHERWISE, AND HEREBY CONSENTS AND AGREES THAT ANY SUCH CLAIM MAY, AT LESSOR'S ELECTION, BE DECIDED BY TRIAL WITHOUT A JURY AND THAT LESSOR MAY FILE AN ORIGINAL COUNTERPART OR COPY OF THIS SECTION WITH ANY COURT AS WRITTEN EVIDENCE OF THE WAIVER AND AGREEMENT CONTAINED HEREIN.

14.11 No Pecuniary Liability. No provision, covenant or agreement contained in this Lease or any obligation herein imposed upon Lessor, or the breach thereof, will constitute or give rise to or impose upon Lessor a pecuniary liability.

14.12 Access to Premises. Lessee agrees that Lessor or any agent or representative of Lessor has the right at all reasonable times to enter upon and to examine and inspect the Leased Property. Lessee further agrees that Lessor and any such agent or representative has such rights of access to the Leased Property as may be reasonably necessary to cause the proper maintenance of the Improvements in the event of failure by Lessee to perform its obligations hereunder.

14.13 Binding Effect. This Lease will inure to the benefit of and will be binding upon Lessor and Lessee and their respective successors and assigns.

14.14 Counterpart Execution. This Lease may be executed in any number of counterparts, each of which will be deemed to be an original but all together will constitute but one and the same Lease. It is also agreed that separate counterparts of this Lease may be executed by Lessor and Lessee all with the same force and effect as though the same counterpart had been executed by both Lessor and Lessee.

14.15 Complete Agreement. This written agreement is a final expression of the agreement between the parties hereto and such agreement may not be contradicted by evidence of any prior oral agreement or of a contemporaneous oral agreement between the parties hereto. No unwritten oral agreement between the parties exists.

14.16 Recording Permitted. The parties agree that this Lease, or a memorandum hereof may be recorded by either party at any time during the duration hereof. Following the termination of this Lease, both parties agree to file an appropriate document in the Public Records to provide notice to third parties of such termination.

14.17 Governmental Claims. The Lessee and its officials and employees do not waive governmental immunity by entering into this Lease and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, et seq and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Lease as between the parties. Further, the Lessee fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Lease. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

14.18 Events Occurring on Days that are Not Business Days. If the date for performance of any act or the exercise of any right under this Lease, other than the payment of amounts of money due hereunder, falls on a day that is not a Business Day, such performance shall be made on the next succeeding Business Day. With respect to payments due under this Lease, if a due date falls on a day that is not a Business Day, payments must be received by the prior Business Day before the due date shown herein. For clarification of the meaning of this provision, failure of the Lessee hereunder to make any payment on or before the date due, whether or not such date is a Business Day shall mean that interest and any penalties and rights to exercise remedies hereunder by Lessor shall immediately accrue and be available to Lessor.

[The remainder of this page intentionally left blank]

IN WITNESS WHEREOF, the parties hereto have executed these presents the day and year first above written.

LESSOR:

U.S. BANK NATIONAL ASSOCIATION

By: _____

Name: _____

Title: _____

ACKNOWLEDGMENT

STATE OF _____)
)ss.
COUNTY OF _____)

The foregoing instrument was acknowledged before me this _____ day of _____, 2013, by _____ as Vice President of U.S. Bank National Association.

Witness my hand and official seal.

My commission expires: _____.

Notary Public

(S E A L)

[END OF SIGNATURES]

[Signatures continue on following page]

LESSEE:

CITY OF CHEYENNE, WYOMING

By: _____
Name: _____
Title: _____

APPROVED AS TO FORM:

By: _____
Name: _____
Title: _____

ACKNOWLEDGMENT

STATE OF _____)
) ss.
COUNTY OF _____)

The foregoing instrument was acknowledged before me this _____ day of _____, 2013, by _____ as _____ of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

My commission expires: _____

Notary Public

(S E A L)

[End of Signatures]

SCHEDULE 1 TO LEASE
DESCRIPTION OF THE LEASED PROPERTY

EXHIBIT A
RENTAL PAYMENT SCHEDULE

Commencement Date: _____, 2013
Due date of First Principal & Interest Payment: _____, 2013

Interest Rate: Interest on the outstanding principal that has been actually advanced by Lessor to Lessee under this Lease, an estimate of which is noted in the chart below, shall accrue at an annual rate equal to (i) 0.70% plus (ii) seventy-five percent (75%) of the one-month LIBOR rate quoted by Lessor from Reuters Screen LIBOR01 Page or any successor thereto, which shall be that one-month LIBOR rate in effect and reset each New York Banking Day, adjusted for any reserve requirement and any subsequent costs arising from a change in government regulation, such rate rounded up to the nearest one-sixteenth percent. The term “New York Banking Day” means any date (other than a Saturday or Sunday) on which commercial banks are open for business in New York, New York. Lessor’s internal records of applicable interest rates shall be determinative in the absence of manifest error.

Rental Payments shall be paid on the Rental Payment Dates shown, with interest and payment amounts calculated in arrears on the same day of the period in accordance with the Rental Payment Schedule set forth below.

As noted in Article 10 of the foregoing Lease, the purchase option may be exercised at any time on a Rental Payment Date under this Lease. In order to exercise such purchase option, Lessee must pay the Rental Payment then due on the date of exercise of the purchase option, plus all remaining principal portions of Rental Payments set forth on Exhibit A, plus such Additional Rent for any Impositions, Insurance Premiums, Utility Charges already incurred but not yet paid to Lessor by Lessee prior to the date of exercise of this option, plus the approximately \$6,669,390 (“Purchase Price”), which Purchase Price shall be adjusted and calculated based on the repayment of all principal, interest, fees and expenses that would have accrued had the portion of the Acquisition Price paid by Lessor to Lessee under the PSA been advanced as a loan accruing interest at the Interest Rate defined above on this Exhibit A, plus payment of the Non-Use Fee accruing on such loan which Non-Use Fee is defined on Exhibit B. Any exercise of the purchase option shall be in an amount equal to repay the remaining entire Acquisition Price paid by Lessor to Lessee under the PSA plus interest, fees and expenses noted hereunder. Partial exercise of the purchase option shall not be permitted.

Rental Payment Date	Estimated Outstanding Principal Drawn**	Estimated Taxes, Insurance, Maintenance Expenses**	Minimum Principal Portion of Rental Payments	Estimated Interest Portion based on and Interest Rate equal to 0.8275%**	Estimated Non-use fee on the portion of the maximum principal amount to be advanced under this credit which has not, as of the date of calculation been drawn**	Total Rental Payment due on Rental Payment Date specified**
11/18/2013	\$2,000,000	\$47,000				\$47,000
1/31/2014	\$2,000,000			\$3,402	\$13,156	\$16,558
4/30/2014	\$2,000,000	\$48,410		\$4,092	\$15,822	\$68,324
7/31/2014	\$2,000,000			\$4,229	\$16,356	\$20,585
9/30/2014	\$5,000,000					
10/31/2014	\$5,000,000	\$49,862		\$8,275	\$15,000	\$73,137
11/30/2014	\$7,000,000					
1/31/2015	\$9,000,000			\$15,860	\$10,333	\$26,194
3/31/2015	\$14,000,000					
4/30/2015	\$14,000,000	\$51,358		\$25,515	\$6,333	\$83,206
6/30/2015	\$16,000,000					
7/31/2015	\$16,000,000			\$31,721	\$2,667	\$34,388
8/31/2015	\$18,000,000					
10/31/2015	\$16,350,000	\$52,899	\$850,000	\$74,475		\$977,374
1/31/2016						
4/30/2016	\$13,000,000	\$54,486	\$2,350,000	\$67,648		\$2,472,134
7/31/2016						
10/31/2016	\$8,900,000	\$56,120	\$3,100,000	\$53,788		\$3,209,908
1/31/2017						
4/30/2017	\$4,200,000	\$57,804	\$3,700,000	\$36,824		\$3,794,628
7/31/2017						
10/31/2017	\$0	\$59,538	\$1,700,000	\$17,378		\$1,776,916

**Amounts to be updated by Lessor on a monthly basis in the records kept at the Lessor's office, which updated amounts shall be based on the actual Acquisition Price advanced by Lessor to Lessee under the PSA, which Acquisition Price is estimated in the chart above and labeled "Estimated Outstanding Principal Drawn," the Interest Rate to be charged (as defined above), based on the actual Acquisition Price advanced under the PSA and actual Lessor Expenses incurred and the actual Non-Use Fee accrued. The Non-Use Fee is paid quarterly in arrears.

EXHIBIT B
OTHER PROVISIONS

The following provisions are incorporated into the Lease as if fully set forth therein:

Interest Rate: The Interest Portion of the Rental Payments calculated as described on Exhibit A. All computations of interest shall be based on a 30 day month/360 day year for the actual number of days elapsed.

Late Charge: If any Rental Payment required under the Lease is 10 Business Days or more past due, Lessee will be charged a late charge of five percent of the delinquent payment or \$5.00, whichever is greater, for each such late payment. The 10 Business Day period provided for herein shall not be construed as a waiver of any Default or Event of Default resulting from any late payment under the Lease.

Non-Use Fee: A non-use fee in an amount equal to 0.40% per annum times \$18,000,000 minus the actual Acquisition Price advanced by Lessor to Lessee pursuant to the PSA, payable quarterly in arrears on the dates set forth in Exhibit A.

Conditions to Effectiveness of the Lease: On or prior to the date of the Lease, Lessee shall deliver the Transaction Documents and shall satisfy all other conditions and agreements required to be satisfied prior to the Closing Date, which are specified in the PSA.

EXHIBIT C

FORM OF RENEWAL CERTIFICATE

The undersigned Chief Financial Officer of the City of Cheyenne, Wyoming (the "City") hereby certifies in compliance with Section 3.2 of the Lease with Option to Purchase dated November 18, 2013 (the "Lease") between the City, as lessee and U.S. Bank National Association, as lessor, that as of the date of this Renewal Certificate the City's governing body has taken such actions necessary to renew the Lease for fiscal year _____.

Dated this _____ day of _____, _____.

CITY OF CHEYENNE, WYOMING

By: _____
Print Name: _____
Title: _____

EXHIBIT D

COMPLIANCE CERTIFICATE

Dated as of _____ (the "Effective Date")

This certificate (the "Compliance Certificate") is submitted to U.S. BANK NATIONAL ASSOCIATION (the "Bank") in connection with the Lease with Option to Purchase dated as of November 18, 2013, as amended from time to time (the "Lease") between the CITY OF CHEYENNE, WYOMING (the "Lessee") and the Bank, as Lessor. Terms used but not defined herein shall have the meanings ascribed in the Lease.

The undersigned hereby certifies to the Bank that the undersigned is familiar with the following financial information, which has been taken from the Lessee's books and records which are complete and accurate, and the following calculations of the financial covenants set forth in the Lease are true and correct as of the Effective Date:

(a) Collection of 6th Penny Sales Tax. Lessee confirms that the 6th Penny Sales Tax (as defined in the PSA) collected by the Lessee as of the date hereof is:

_____ (date range)

\$ _____ (amount collected)

(b) Application of Revenues to Rental Payments. Lessee confirms that the revenues from the 6th Penny Sales Tax are being used for the Rental Payments due under this Lease and such revenues have not been reduced, impaired, repealed or otherwise adversely impacted which adverse impact relates to the administration, enforceability or collectability of such revenues.

(c) Prompt Collections. Lessee confirms that it has collected the revenues from the 6th Penny Sales Tax promptly and such revenues are being held by Lessee, without encumbrance by any other party for the payment of amounts due under the Lease, subject to the provisions of the Act and the constitution and laws of the state of Wyoming.

(d) Instruments of Further Assurance. Lessee confirms that no other interest in the Project or the Lease has been acquired by any third party.

(e) Rental Payment Amounts. The undersigned hereby certifies that the amount of 6th Penny Sales Tax noted above exceeds the amounts required to be paid to the Bank in accordance with the terms and provisions of Exhibit A to the Lease, which Exhibit A is adjusted on a monthly basis to reflect the actual amounts of principal outstanding, and accrued but unpaid interest, fees, expenses and other charges to be paid by Lessee to Bank.

THE UNDERSIGNED FURTHER CERTIFIES THAT: (A) THE UNDERSIGNED IS FULLY AUTHORIZED BY THE LESSEE TO SUBMIT THIS COMPLIANCE CERTIFICATE TO THE BANK, (B) LESSEE IS IN COMPLIANCE WITH ALL OF THE COVENANTS CONTAINED IN THE LEASE, THE PSA AND THE OTHER TRANSACTION DOCUMENTS, AND (C) THERE HAS BEEN NO EVENT OF DEFAULT UNDER THE LEASE OR PSA OR OTHER TRANSACTION DOCUMENTS WHICH HAS NOT BEEN CURED OR WAIVED, NO UNMATURED EVENT OF DEFAULT HAS OCCURRED.

Dated this ____ day of _____, 20__.

LESSEE:

CITY OF CHEYENNE, WYOMING

By _____
Name: _____
Title: _____

Attest:

By: _____
Name: _____
Title: _____